

Parliament to enter the wills, or at least extracts from the wills, of deceased proprietors of stock, the object of the legislature, as the Court determined, was not to make the Company responsible for the due administration of the fund according to the equitable right, but to enable them to ascertain who under the will were the persons legally entitled (*a*). Had the construction been otherwise, the Bank of England would have been trustee for half the families in the kingdom. Now by 8 & 9 Vict. c. 97, executors and administrators of a deceased holder of stock are enabled to transfer on producing probate or letters of administration, and the Acts requiring an entry or registration by the Bank of any will or codicil are repealed (*b*).

[**National Debt Commissioners and savings banks.** — By the Government Annuities Act, 1882 (*c*), s. 8, the National Debt Commissioners or any savings bank are not to be affected by notice of any trust express, implied or constructive affecting any savings bank annuity or insurance (except such trusts as are from time to time recognized by law in relation to deposits in savings banks and except such trusts as are provided for by the Married Women's Property Acts.)]

* 4. **Feme covert ought not to be appointed trustee.** — [*33] A *feme covert* may be a trustee, but it would not be advisable to select a *feme covert* (*a*).¹

Has sufficient discretion. — There is here no absolute want of discretion, for a woman has no less judgment after marriage than before (*b*); nay, as was quaintly added by Sir

(*a*) *Hartga v. Bank of England*, 3 Ves. 55; *Bank of England v. Parsons*, 5 Ves. 665; *Bank of England v. Lunn*, 15 Ves. 583, *per* Lord Eldon; *Humberstone v. Chase*, 2 Y. & C. 209.

(*b*) As to the state of the law before this Act, see 3d Edit. p. 32, note (1).

[(*c*) 45 & 46 Vict. c. 51.]

(*a*) *Lake v. De Lambert*, 4 Ves. 595, *per* Lord Loughborough; and see *Re Kaye*, 1 L. R. Ch. App. 387.

(*b*) *Compton v. Collinson*, 2 B. C. C. 387, *per* Buller, J.; *Hearle v. Greenbank*, 1 Ves. 305, *per* Lord Hardwicke; *Bell v. Hyde*, Pr. Ch.

¹ *Bradish v. Gibbs*, 3 Johns. Ch. 523; *Dundas v. Biddle*, 2 Barr. 160; *Livingston v. Livingston*, 2 Johns. Ch. 541; *Clarke v. Saxon*, 1 Hill, Ch. 69; *People v. Webster*, 10 Wend. 554; *Graham v. Long*, 65 Pa. St. 383; *Thompson v. Murray*, 2 Hill, Ch. 214; *Springer v. Berry*, 47 Me. 330; *Groves' Heirs v. Fulsome*, 16 Mo. 543; 57 Am. Dec. 247.